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24-CIV-04983 AL MINOR VS. COSTAR IMPORTS, INC., ET AL.

LINE 5

AL MINOR
COSTAR IMPORTS, INC.

ELISE R. VASQUEZ
ERNEST M. MALASPINA

PLAINTIFF: AL MINOR'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Plaintiff Al Minor's motion for leave to file a first amended complaint (hereinafter "FAC") is DENIED without prejudice.

Defendant's concurrently filed request for judicial notice of two exhibits, plaintiff's verified responses to Form Interrogatory Nos. 208.1 and 50.1, is GRANTED. (Evid. Code § 453.)

Background

This is an employment action arising from plaintiff's role as Vice President of Sales with Defendant Costar Imports, Inc., a national luxury jewelry purveyor, from April 12, 2021 through January 31, 2024. Plaintiff's complaint alleges six causes of action and was filed on August 12, 2024.

Approximately two years later, on May 29, 2026, plaintiff filed the instant motion which seeks to add three new causes of action and name two Doe Defendants. Defendant Costar Imports, Inc. opposes, contending the motion is both procedurally and substantively defective and prejudicial because "the proposed amendment does not clarify existing allegations—it transforms the case by expanding liability, introduce new legal theories, and requiring duplicative and burdensome discovery, delaying resolution, and increasing costs." (Opp. p. 18.)

Legal Standard

Motions for leave to amend the pleadings are left to the sound discretion of the trial court judge. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc. § 473, subd. (a)(1) [emphasis added]; see Code Civ. Proc. § 576.) Under code section 576 a "judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (*McMillin v. Eare* (2021) 70 Cal.App.5th 893, 909 [italics in original omitted].)

"California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Mac v. Minassian* (2022) 76 Cal.App.5th 510, 519.) (citations and internal quotations omitted). However, the long deferred presentation of a proposed amendment without a showing of excuse for the delay, even if otherwise good and proposed in proper form, is itself a significant factor supporting denial of the proposed amendment. (Michael Paul Thomas, Cal. Civ. Ctrm. Hbook. & Desktop Ref. (2025 ed.) § 9:63 Amending the Complaint Any Time Before Judgment.)

Discussion

Under California Rules of Court, rule 3.1324, subdivision (a), the party seeking to amend should prepare a written application for leave to amend with the following attachments:

- A copy of the proposed amendment or amended pleading;
- A declaration by counsel stating why amendment is necessary; and
- A proposed order authorizing the amendments.

(Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group, June 2025 Update) ¶ 6.623)

Furthermore, a motion to amend must be supported by a declaration specifying: (1) the effect of the amendment; (2) why it is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier (Cal. Rules of court, rule 3.1324(b).)

Here, as contended by defendants, the court finds plaintiff's motion is procedurally deficient in many aspects. First, the motion does not comply with California Rules of Court, rule 3.1324, subdivision (a) because it fails to include a copy of the proposed amended complaint and plaintiff did not file a declaration setting forth the allegations proposed to be added and deleted, and where, by page, paragraph, and line number. The Court notes the proposed FAC is appended to the Declaration of plaintiff's counsel Ms. Elise Vasquez, but the memorandum in support of the motion does not meaningfully address anything about the FAC or cite to the amended allegations other than mention in footnote that the FAC is attached as exhibit J to counsel's declaration.

More important, plaintiff's motion does not comply with California Rules of Court, rule 3.1324, subdivision (b) because the declaration of plaintiff's counsel only discusses the timing of the decision to file the amended complaint and the timing of parties' meet and confer efforts regarding a proposed stipulation to the FAC. In pertinent part, the declaration does not satisfy any of the requirements of the rule specifying the effect of the amendment, explaining why the amendments are necessary and proper, when the facts giving rise to the amended allegations were discovered and why the request to amend was not made earlier, although it is somewhat implied.

But most important, it appears that Plaintiff **attempted** to file a reply brief (which has not been docketed) and declaration to address some of these issues **and apparently attached a revised complaint**. The Court believes this to be the case despite not having seen the reply because on July 8, 2026 Defendant filed an objection to this purported reply and provided the Court a courtesy copy (of its objection). So ultimately the Court does not now know what amendment it is actually being asked allow plaintiff to file.

Accordingly, based on these many procedural failures, plaintiff's motion for leave to file an amended complaint is DENIED.

However, the Court anticipates that Plaintiff will continue to seek to amend. If plaintiff does, the Court directs the parties to cooperate and have an **in person or video** meet and confer prior to the plaintiff filing another motion and consider stipulating at least to a reasonable amendment addressing the new claims that were purportedly not resolved by the labor board in May 2026.

To support that meet and confer, the Court will note that with respect to the existing six causes of action, the opposition contends that plaintiff cannot demonstrate the amendments are necessary and proper "because there is no individual liability for the first six causes of action as a matter of law and thus leave

to amend with respect to adding the proposed individual defendants to these causes of action should be denied as futile.” (Opp. p. 12.) It also raises statute of limitations and other issues. Plaintiff has not addressed these arguments and should before seeking to amend.

Further, defendants contend amending the complaint at this stage in the proceedings would prejudice defendants because the proposed FAC “dramatically expands” the scope of the entire action by adding the two additional defendants to every claim- nine in total- not just the three new proposed wage and hour causes of action. (Opp. p. 18.) The end result would force Defendant Costar Imports and the new defendants to significantly change their litigation strategy which would include new written discovery and revisit prior discovery, much of which would be duplicative and already performed at significant expense. The prejudice would be compounded by the fee-shifting nature of the claims which would amplify the defendants’ financial exposure by increasing costs and potential fee liability. Additionally, separate counsel may be retained which would increase costs, complicate coordination and potentially multiply motion practice.”

But, leave to amend is prejudicial to an adverse party when amendment would result in the following issues: a delay of trial, the loss of an opportunity for motion practice, the loss of critical evidence, added costs of preparation, and increased burdens of discovery. (*P&D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332, 1345.) In some cases, even the “time and expense associated with opposing a legal theory” can be prejudicial. (*Payton v. CSI Elec. Contractors* (2018) 27 Cal.App.5th 832, 849 [plaintiff belatedly sought to adopt new legal theories after a failed motion for class certification].) However, “[a]bsent prejudice, delay alone [is] not ground for denial: If delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case, even if sought as late as the time of trial. [Citations omitted].” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group, June 2025 Update) ¶ 6:653.)

Here, while defendant raises valid points regarding the potential for prejudice resulting from added costs of preparation and likely increased burdens of discovery, there is no trial date set and it appears it will be difficult for Defendant to establish that the prejudice asserted outweighs the Court’s liberal policy to amend should plaintiff file another motion to amend.

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24-CIV-08298 FABIOLA BARAJAS LOZANO VS. FCA US, LLC., ET AL.

LINE 6

FABIOLA BARAJAS LOZANO
FCA US, LLC.

LARRY W. CHAE
BRADFORD G. HUGHES

DEFENDANT: FCA US, LLC'S MOTION TO COMPEL PLAINTIFF FABIOLA BARAJAS LOZANOS INTITAL RESPONSES TO DEFENDANTS REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE (1) AND REQUEST FOR SANCTIONS IN THE AMOUNT OF \$608.00

TENTATIVE RULING:

The unopposed motion is granted. Plaintiff shall serve verified responses, without objection, to defendant's Request for Production of Documents, Set One, within 14 days. The request for sanctions is also granted. Plaintiff shall pay defendant \$368 (\$148 plus \$160 plus \$60) within 30 days.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.
